

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Squad #15	CCRB Case #: 201409158	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 09/05/2014 6:30 PM	Location of Incident: Keegans Lane and O'Gorman Avenue and the 122nd Precinct Stationhouse		18 Mo. SOL 3/5/2016		Precinct: 122
Date/Time CV Reported Sat, 09/06/2014 7:06 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 09/06/2014 7:06 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Victor Pal	03380	925877	122 PCT
2. DT3 Arthur Truscelli	00691	931348	NARCBSI
3. DT3 Gerard Delprete	01973	923749	NARCBSI
4. DT3 John Brooks	06877	915057	NARCBSI
5. Officers			NARCBSI
6. An officer			NARCBSI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Victor Bruno	01602	901239	NARCBSI
2. DT3 Michael Friedman	06423	920305	NARCBSI
3. POM Craig Horlebein	20976	920402	122 PCT
4. DT3 Dmitriy Shery	00676	940737	NARCBSI
5. SGT Nikolaos Stefopoulos	04686	944294	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . DT3 John Brooks	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. John Brooks stopped § 87(2)(b) and § 87(2)(b)	A . Miscellaneous - Subject Retired
B . DT3 Arthur Truscelli	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Arthur Truscelli stopped § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . Officers	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, officers drew their guns.	C . Officer(s) Unidentified
D . DT3 John Brooks	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. John Brooks searched § 87(2)(b)	D . Miscellaneous - Subject Retired
E . DT3 Gerard Delprete	Discourtesy: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Gerard Delprete spoke rudely to § 87(2)(b)	E . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
F . DT3 Gerard Delprete	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Gerard Delprete frisked § 87(2)(b)	F . Unsubstantiated
G . DT3 Arthur Truscelli	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Arthur Truscelli frisked § 87(2)(b)	G . Unsubstantiated
H . DT3 Arthur Truscelli	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Arthur Truscelli searched § 87(2)(b)	H . Unsubstantiated
I . DT3 John Brooks	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. John Brooks searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	I . Miscellaneous - Subject Retired
J . DT3 Arthur Truscelli	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Arthur Truscelli searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	J . Exonerated
K . DT3 Gerard Delprete	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Gerard Delprete refused to provide his name and shield number to § 87(2)(b)	K . Unsubstantiated
L . An officer	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, an officer refused to provide his name and shield number to § 87(2)(b)	L . Officer(s) Unidentified
M . DT3 Gerard Delprete	Abuse: At Keegans Lane and O'Gorman Avenue in Staten Island, Det. Gerard Delprete strip-searched § 87(2)(b)	M . Unsubstantiated
N . SGT Victor Pal	Abuse: At the 122nd Precinct stationhouse, Sgt. Victor Pal did not process § 87(2)(b)'s complaint regarding officers.	N . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 5, 2014, at approximately 6 p.m., Det. Arthur Truscelli and Det. John Brooks of Narcotics Borough Staten Island observed § 87(2)(b) walking in in the vicinity of Cranford Street and O’Gorman Avenue in Staten Island, when he accepted a ride from his friend, § 87(2)(b). Det. Truscelli and Det. Brooks followed the vehicle and once it parked, they stopped both § 87(2)(b) and § 87(2)(b) (**Allegations A and B**). Det. Gerard Delprete and Det. Michael Friedman responded after the stop was conducted by their team members. § 87(2)(b) alleged that officer(s) drew their guns upon approach (**Allegation C**). § 87(2)(b) § 87(2)(b) alleged that Det. Brooks took his wallet out of his hand and looked through it (**Allegation D**).

§ 87(2)(b) asked the reason for the stop and PO Delprete allegedly responded “Shut the fuck up” (**Allegation E**). Det. Delprete patted down § 87(2)(b)’s entire body (**Allegation F**) while Det. Truscelli frisked and searched § 87(2)(b) (**Allegations G and H**). Det. Brooks and Det. Truscelli searched the car (**Allegations I and J**).

While § 87(2)(b) stood at the back of the vehicle, he made three loud requests to the officers for their names and shield numbers. Det. Delprete responded, “Fuck off. You’re not getting nothing” (within **Allegation E and K**). One of the officers, who remains unidentified, also replied that § 87(2)(b) was getting no information (**Allegation L**). Det. Delprete allegedly told § 87(2)(b) “Why you squeezing your ass? I think you have something stuck up your ass” and then told him, “Shut the fuck up, turn around and spread your legs” (within **Allegation E**). Det. Delprete allegedly reached his arm into the front of § 87(2)(b) § 87(2)(b)’s shorts, moved his hands around his genitalia and lifted them. He then moved his hand to § 87(2)(b)’s rear and slid his finger up his buttocks without penetrating his anal cavity (**Allegation M**). No contraband was found on § 87(2)(b) § 87(2)(b) and § 87(2)(b) were both released, without being arrested or issued summonses.

That same day, between 6:30 p.m. and 7 p.m., § 87(2)(b) and his mother, § 87(2)(b) went to the 122nd Precinct stationhouse. § 87(2)(b) informed the desk officer, Sgt. Victor Pal of the 122nd Precinct, of the aforementioned incident and requested to file a complaint against officers in regards. Sgt. Pal indicated he could not take a complaint against officers from other commands and directed § 87(2)(b) to call the CCRB’s telephone number, which he gave to him, in order to file a complaint (**Allegation N**). Det. Truscelli failed to prepare a Stop, Question and Frisk Report with regards to this incident and he is cited for Other Misconduct (**Allegation O**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to the strip-search allegation.

§ 87(2)(b) filed a notice of claim with the City of New York on § 87(2)(b), claiming physical injury, as well as mental anguish and other psychological injuries; shame, humiliation, indignity and loss of freedom (encl. Q1-Q4). He sought one million dollars as redress.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. B8 and B9).
- Det. Brooks has been a member of the service for 19 years and there are no substantiated allegations against him (encl. B1-B2).
- Det. Delprete has been a member of the service for 15 years and there are three substantiated allegations against him: in case number 201205309, vehicle search, frisk and search of person allegations were substantiated by the Board. The NYPD disposition for this case is currently unavailable (encl. B3-B5).
- Det. Truscelli has been a member of the service for 12 years and there are no substantiated CCRB allegations against him (encl. B6).
- Sgt. Pal has been a member of the service for 15 years and there are no substantiated CCRB allegations against him. § 87(2)(g)

Finding and Recommendations

Identification of Subject Officers

§ 87(2)(b) described the officer who handcuffed him, searched his wallet, searched § 87(2)(b)'s vehicle and refused to provide his name and shield number to him as a 38-year-old white man, 6'2" tall, over 200 pounds, with a thin build. According to Det. Brooks' NYPD Single Officer Photograph, he is a § 87(2)(b)-old white man, § 87(2)(b), with an average build, brown hair and brown eyes. § 87(2)(g)

Det. Truscelli acknowledged stopping § 87(2)(b) and § 87(2)(b) removing § 87(2)(b) from the vehicle, and searching the vehicle. § 87(2)(g)

§ 87(2)(b) interacted with an officer who he described as a 5'8" tall, white man, over 200 pounds, muscular with a sleeve of tattoos and attributed various allegations to him. § 87(2)(g)

§ 87(2)(b) alleged that upon approaching the vehicle officers drew their guns. He could not describe the officers and did not how many of the officers, if more than one had their guns drawn. None of the officers indicated that they had their guns drawn and § 87(2)(b) never alleged that officers drew their guns. Furthermore, § 87(2)(b) alleged that he made a general request for name and shield numbers and aside from Det. Delprete, an officer who he could not identify, refused to provide the information to him. § 87(2)(b) did not recall any requests being made for name and shield numbers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) obtained the desk officer's name as Sgt. Pal. Sgt. Pal was the assigned desk officer at the time of the incident and PO Craig Horlebein, the telephone switchboard operator confirmed that Sgt. Pal interacted with § 87(2)(b) § 87(2)(g)

Allegation A- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. John Brooks stopped § 87(2)(b) and § 87(2)(b)

Allegation D- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. John Brooks searched § 87(2)(b)

Allegation I- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. John Brooks searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Because Det. Brooks is on terminal leave ahead of retiring from the NYPD, the CCRB was unable to interview him (encl.T23). Consequently, it is recommended that **Allegations A, D, and I** be closed as **Miscellaneous- Subject Retired**.

Allegation B- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Arthur Truscelli stopped § 87(2)(b) and § 87(2)(b)

It is undisputed that Det. Truscelli and Det. Brooks stopped § 87(2)(b) and § 87(2)(b). The majority of the observations leading to the stop are also not disputed with the exception of money being exchanged between § 87(2)(b) and § 87(2)(b)

As confirmed by both civilians and Det. Truscelli, § 87(2)(b) was walking along Durante Street when he saw § 87(2)(b) driving past in his vehicle. § 87(2)(b) entered the vehicle and they drove away and parked in the vicinity of Keegans Lane and O’Gorman Avenue. § 87(2)(b) and § 87(2)(b) denied that they exchanged money or narcotics.

Det. Truscelli (encl. H1-H5) noted that Durante Street had two kite locations, and § 87(2)(b) was looking around and sticking his head out down one side of the street, and then the other side of the street, as if looking for a taxi cab. § 87(2)(b) suddenly stopped walking on the right-hand side of the street for a moment, in front of a residence where drug pills and heroin are known to be sold, a multiple kite location. Det. Truscelli stated that § 87(2)(b) then crossed the street, started looking around in the aforementioned manner, at which time he entered an old-style SUV that had pulled up being driven by § 87(2)(b). Det. Truscelli noted that in Staten Island, the way that most narcotics transactions occur is via delivery service, from a supplier in a car, to a patron on foot. As a result of Det. Truscelli's police experience, he believed that a transaction was occurring. Det. Truscelli and Det. Brooks followed § 87(2)(b)'s vehicle for a minute, at which point he parked his vehicle. Det. Truscelli stated that he observed an exchange of money between § 87(2)(b) and § 87(2)(b) but did not know which of the two provided the money. No other observations were made and no object was exchanged for currency. Det. Truscelli and Det. Brooks decided to stop both individuals at this time.

Det. Delprete and Det. Friedman (encl. I1-I5 and M1-M5) both provided consistent statements that either Det. Truscelli or Det. Brooks radioed them and informed them that they made an observation of an individual who entered a vehicle, provide the two descriptions of the

individuals and that they were going to stop them. No other information was relayed about any other observations made prior to the stop nor did they discuss the reasons at the completion of the incident.

According to People v. Couch, N.Y. App. Div. (2013) (encl. 1P-1Q), an officer trained in street level narcotics only had founded suspicion that criminality was afoot, when he observed a man transfer money to another man for a watch in an area known to have a high level of narcotics activity. In order for an officer to stop someone in their vehicle for a non-vehicle infraction, the officer must have reasonable suspicion that the stopped civilian committed a crime. People v. Peterson, 689 N.Y.S.2d 777 (Supreme Ct. Appellate Div. 3rd Dept. November 24, 1999) (encl. 1R-1S). Innocuous behavior alone cannot give rise to reasonable suspicion. People v. Loper, 2014 NY Slip Op 177, 3 (2014-2nd Dept.).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that
Allegation B be Substantiated.

Allegation C-Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island an officers drew their guns.

Allegation L-Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island an officer refused to provide his name and shield number to § 87(2)(b)

As discussed in the Identification of Subject Officers, § 87(2)(b) and § 87(2)(b) could not identify the officer who drew a gun or refused to provide their name and shield to § 87(2)(b). § 87(2)(b) never alleged a gun drawn allegation and § 87(2)(b) had no recollection of § 87(2)(b) requesting anyone’s information. None of the officers acknowledged drawing their guns or that a request for name and shield was made. Without further identifying information, it is recommended that **Allegations C and L** be closed as “**Officer(s) Unidentified.**”

Allegation E- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Gerard Delprete spoke rudely to § 87(2)(b)

Allegation F- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Gerard Delprete frisked § 87(2)(b)

Allegation G- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Arthur Truscelli frisked § 87(2)(b)

Allegation H- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Arthur Truscelli searched § 87(2)(b)

Allegation K- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Gerard Delprete refused to provide his name and shield number to § 87(2)(b)

Allegation M- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Gerard Delprete strip-searched § 87(2)(b)

§ 87(2)(b) alleged that after he interacted with Det. Brooks and once he questioned the validity of the stop, Det. Delprete allegedly told him to “Shut the fuck up” and “Fuck off.” § 87(2)(b) further alleged that Det. Delprete frisked him and found nothing. Concurrently, § 87(2)(b) alleged that Det. Truscelli frisked his thighs and searched his pockets, which contained nothing. After the car search (discussed within Allegation J), § 87(2)(b) made a loud request for all of the officer’s names and shield numbers. Det. Delprete allegedly responded, “Fuck off. You’re not getting anything.” The interaction continued with Det. Delprete who asked § 87(2)(b) “Why you squeezing your ass? I think you have something stuck up your ass.” Det. Delprete then told § 87(2)(b) “Shut the fuck up, turn around and spread your legs.” Det. Delprete allegedly reached his arm into the front of his shorts, moved his hands around his genitalia and lifted them. § 87(2)(b) further alleged that Det. Delprete then moved his hand to his rear and slid his finger up his buttocks (in a swiping motion) without penetrating his anal cavity. According to § 87(2)(b) no contraband was found as a result.

As indicated previously, § 87(2)(b) provided a statement 9.5 months after the incident. He had no recollection of any discourtesies being uttered, or any requests to the officers for their names and shield numbers. § 87(2)(b) saw an officer he could not describe put a glove on and indicated that he saw § 87(2)(b) being strip searched. However, he then indicated that he made no observation pertaining to a strip search and looked away once he saw the glove. It should be noted that § 87(2)(b) provided a statement to the IAB in regards to this incident on September 9, 2014, at which time he stated that he was never strip searched or penetrated in any way by the narcotics officers (encl. C14). § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

All of the officers denied the allegations. Det. Truscelli indicated that once § 87(2)(b) and § 87(2)(b) were removed to the back of the vehicle, he spent his time searching the vehicle and was not involved in further interactions with them. Det. Delprete indicated that he had no interactions with either civilian and in fact, interacted with § 87(2)(b)’s father, who had arrived to the scene at the end of the incident upset that his son was stopped by the officers.

§ 87(2)(g)

§ 87(2)(b) therefore it is recommended that

Allegations E, F, G, H, K and M be Unsubstantiated.

Allegation J- Abuse of Authority: At Keegans Lane and O’Gorman Avenue in Staten Island, Det. Arthur Truscelli searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Det. Truscelli searched § 87(2)(b)’s vehicle.

§ 87(2)(b) and § 87(2)(b) confirmed that upon their exit from the vehicle, Det. Brooks and Det. Truscelli searched the vehicle. § 87(2)(b) indicated that nothing was found in his vehicle. § 87(2)(b) heard one of the officers state that they found marijuana from somewhere around the driver's side of the vehicle and that they found a dirty syringe on the passenger side of the vehicle. § 87(2)(b) took responsibility for the items at the scene.

Det. Truscelli stated that he smelt burnt marijuana emanating from § 87(2)(b)'s vehicle, while he approached the vehicle. Det. Truscelli stated that he then entered the front portion of the vehicle for one or two minutes, where he observed loose marijuana on the floor and on the front driver's seat. He also observed a syringe with a cap on the floor in the back. Det. Truscelli did not arrest or summons either occupant because Staten Island courts will not prosecute for possession.

In People v. Orlando Rowe, 867 N.Y.S. 2d 377 (2008), an officer smelled marijuana coming from a nearby moving vehicle, initiated the stop of the vehicle and discovered marijuana in plain view. The Court held that the scent of marijuana alone provided the officer with probable cause to stop and search the entire vehicle (encl. 1A-1C). According to People v. Johnson, 901 N.Y.S. 2d 909 (2009) (encl. 1D-1E), the smell of marijuana alone is sufficient to provide probable cause to search a vehicle.

§ 87(2)(g)

It is therefore recommended that **Allegation J** be exonerated.

Allegation N- Abuse of Authority: At the 122nd Precinct stationhouse, Sgt. Victor Pal refused to process § 87(2)(b)'s complaint against officers.

§ 87(2)(b) alleged that he reported the incident that transpired between himself, § 87(2)(b) and NYPD officers to a desk officer who identified himself as Sgt. Pal at the 122nd Precinct. § 87(2)(b) alleged that when he requested to file a complaint in regards to the incident, Sgt. Pal told him that the "narcotics" officers were not from his command and therefore he could not take the complaint. He directed § 87(2)(b) to call the CCRB's telephone number, which he provided to him.

Exhaustive attempts were made to reach § 87(2)(b) but upon numerous contact attempts, she said she could not talk and that she would call back, and she ultimately provided no statement to the CCRB with regards to this allegation.

Sgt. Pal was provided with a synopsis of the incident that occurred at Keegans Lane and O'Gorman Avenue, as well as the incident that occurred at the 122nd Precinct stationhouse; however he stated that he did not recall this incident. Sgt. Pal was presented with the photograph that was taken of § 87(2)(b) at the CCRB; however he stated that he did not recognize him. Sgt. Pal denied that he refused to process a complaint against officers and indicated that if someone comes in to the stationhouse to file a complaint, he makes an entry in the command log and hands them the form which they can complete at the precinct or return later.

Two officers witnessed this portion of the incident: PO Horlebein, the Telephone Switchboard Operator, and Det. Shery. They both recalled § 87(2)(b) and his mother being at the precinct and that their attention was drawn to the situation because of § 87(2)(b) s yelling at the front desk. Det. Shery recalled § 87(2)(b) making comments about “This guy fingering me. He raped me with his finger. He strip-searched me.” Neither officer heard a request to file a complaint or Sgt. Pal refuse to do so.

A review of the 122nd Precinct Command log found no entries pertaining to § 87(2)(b) s arrival at the precinct for the entire tour (encl. O10-O14).

According to NYPD Patrol Guide Procedure 207-31 (encl. 1F-1L), civilian complaints against officers can be filed at a precinct stationhouse. In addition, officers receiving civilian complaints of officer misconduct must report the complaint to either the CCRB or IAB, depending on the allegations.

§ 87(2)(g)
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§ 87(2)(g) it is recommended that **Allegation N** be **Substantiated**.

§ 87(4-b), § 87(2)(g)
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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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